28.04.01 Statutory Functions

As the principal officer of the company, the secretary must observe all the legal formalities in respect of the provisions of the Companies Act and other laws (e.g., Income-tax Act, Stamp Act, Sales-tax Acts, etc.) which have a bearing on the activities of the company.

According to Companies Act 2013

(i) To sign document and proceedings requiring authentication by the company

(ii) To maintaining share registers and register of Directors and of contracts

(iii) To give notice to register for increase in the share capital

(iv) To deliver share certificate of allotment within 2 months after transfer

(v) To sign and send annual return

(vi) To make a statutory declaration for receiving certificate of commencement of business

(vii) To send notice of general meeting to every member of the company

(viii) To make statutory books

(ix) To prepare minutes of every general meeting and board meeting within 30 days

(x) To file a resolution with the registrar

(xi) To assist in preparing the statement of affairs in a winding up

Under the Income-tax Act: He is responsible for deduction of requisite income tax from salaries of employees, dividends and interests payable. He has to ensure that the tax deducted is deposited at government treasury. Secretary has to submit and verify various forms for timely filing of income tax returns to the authorities in accordance with the law. He has to see that the certificate of Tax Deducted at Source (TDS) is issued to every employees and shareholders.

Under Indian Stamp Act: The company secretary has to ensure that whether proper stamps are affixed on the company's documents like letter of allotment and share certificate or not. He is also complying with Minimum Wages Act, Industrial Disputes Act, Employee State Insurance Act etc.

Under the Sales-Tax Act: He must ensure timely submission of tax returns to the Sales-tax authorities and payment of tax.

Under Other Acts: He must see that the provisions of any other Act applicable to the company, e.g., Foreign Exchange Regulation Act, Industries (Development and Regulation) Act, and Rules, are also complied with. Where the company is carrying on manufacturing business, he must also comply with the provisions of the Factories Act, Payment of Wages Act, Industrial Disputes Act and other labour laws.

28.04.02 Non-Statutory Functions

Secretary has to discharge non-statutory functions in relation to directors, shareholders and office and staff. These functions are briefly mentioned.

(1) Functions as agent of directors;

(2) Functions towards shareholders;

(3) Functions towards office and staff.

1. Functions in Relation to Directors

A company secretary acts under the full control of the board of directors and carry out the instructions of the directors. The secretary provides necessary advice and information to the board to formulate company policy and arrive at decisions. It is the secretary's duty to implement the decisions taken by the board of directors.

The duties of the secretary includes arranging board meetings, issuing notice and preparing agenda of such meetings, recording the attendance of the directors and the minutes and resolutions of the meeting in consultation with the Chairman. He maintains all important correspondence, files, documents and records in the board office.

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